

Chapter

The Union Legislature

1. The strength of the house is 550. On a particular day 50 members are present. The speaker decides to adjourn the house. Identify the MOST LIKELY reason for the adjournment.

- (i) Disorder in the house
- (ii) Lack of quorum
- (iii) Breach of privilege
- (iv) Contempt of the House

MAIN 2024

2. The salaries and allowances of the ministers are decided by the:

- (a) Parliament
- (b) Finance Minister
- (c) President
- (d) Prime Minister

MAIN 2024

3. Name the two Houses of the Indian (Union) Parliament.

MAIN 2024

4. The Union Parliament is the supreme legislative body in the country. With reference to the Indian Parliament answer the following questions:

- (i) The Rajya Sabha is called a Permanent House. Explain this statement.**
- (ii) Explain the composition of the Rajya Sabha.**
- (iii) Mention any two exclusive powers of the Lok Sabha and two powers exclusive to the Rajya Sabha.**

MAIN 2024

5. What is the strength of the Rajya Sabha for elected and nominated members?

COMP 2024

6. An ordinance has to be approved by the Parliament within _____ weeks.

- (a) Two
- (b) Three
- (c) Six
- (d) Eight

MAIN 2023

7. A major natural calamity has taken place and the opposition wants the house to lay aside all other business and take up this matter of urgent importance.

Which motion should the house move to allow this?

- (a) Adjournment Motion
- (b) No-confidence Motion
- (c) Confidence Motion
- (d) Censure Motion

MAIN 2023

8. The Union Legislature comprises the President and the two houses of the Parliament. With reference to the Parliament, answer the following questions:

- (i) Mr. Raj wants to be a member of the Lok Sabha. Mention any three qualifications required to contest elections for the Lok Sabha.**
- (ii) Mention any three legislative powers of the Union Parliament.**
- (iii) The Parliament controls the Executive. Mention any four ways in which it exercises its control.**

MAIN 2023

9. India has opted for a federal system of government with a strong unitary bias. In this context answer the following questions :

- (i) List any three federal features of Government in India.**
- (ii) List any two conditions when the Parliament can make laws on Subjects in**

the State List.

(iii) Write short notes on any two unitary features of the Government in India.

COMP 2021

10. What is an Adjournment Motion ?

COMP 2023

11. Mention any one matter where the Rajya Sabha enjoys equal powers with the Lok Sabha.

MAIN 2022

12. If the President does not give his assent to a Bill, what happens ?

SQP 2021

13. If the strength of a House is 230, what is the Quorum of the House?

(a) 46

(b) 32

(c) 23

(d) 20

COMP 2021

Solution

1.

Ans: (ii) Lack of quorum

Explanation:

The total strength of the House is 550, so the required quorum is one-tenth of the total membership, i.e. 55 members. Since only 50 members are present on that day, the quorum is not met. Therefore, the Speaker is most likely to adjourn the House due to lack of quorum.

2.

Ans: (a) Parliament

Explanation:

The salaries and allowances of ministers are determined by **Parliament**. These are fixed and regulated through laws passed by Parliament, ensuring legislative control over public expenditure and maintaining accountability in a parliamentary system of government.

3.

Ans: The Indian (Union) Parliament consists of two Houses:

(i) Lok Sabha

(ii) Rajya Sabha

4.

Ans:

(i) Why the Rajya Sabha is called a Permanent House:

The Rajya Sabha is called a Permanent House because it is not subject to dissolution. One-third of its members retire every two years and are replaced by new members, ensuring continuity in its functioning.

(ii) Composition of the Rajya Sabha:

The Rajya Sabha consists of a maximum of 250 members. Out of these, 238 members are elected by the elected members of the State Legislative Assemblies and Union Territories through proportional representation, and 12

members are nominated by the President for their special knowledge or experience in fields such as literature, science, art and social service.

(iii) Exclusive powers:

Exclusive powers of the Lok Sabha:

1. Money Bills can be introduced only in the Lok Sabha.
2. A No-Confidence Motion against the Council of Ministers can be moved only in the Lok Sabha.

Exclusive powers of the Rajya Sabha:

1. It can pass a resolution to create All-India Services.
2. It can authorize Parliament to make laws on subjects in the State List in the national interest.

5.

Ans: The Rajya Sabha consists of **238 elected members** and **12 nominated members**.

6.

Ans: (c) Six

Explanation:

An ordinance issued by the President must be approved by the Parliament within **six weeks** from the date of its reassembly. If it is not approved within this period, the ordinance automatically ceases to operate.

7.

Ans: (a) Adjournment Motion

Explanation:

An Adjournment Motion is moved when a matter of urgent public importance needs immediate discussion by the House. Since a major natural calamity has occurred and the opposition wants to set aside all other business to discuss it, an Adjournment Motion is the most appropriate procedure.

8.

Ans:

(i) Qualifications required for Mr. Raj to contest elections for the Lok Sabha:

- He must be a citizen of India.
- He must be at least 25 years of age.
- He must be a registered voter in any Indian constituency.

(ii) Three legislative powers of the Union Parliament:

- It has the power to make laws on subjects in the Union List and Concurrent List.
- It can amend the Constitution of India.
- It controls national finances by approving the Union Budget.

(iii) Four ways in which Parliament controls the Executive:

- Through **Question Hour**, where ministers are questioned.
- By passing a **Vote of No Confidence** to remove the government.
- Through **Budget approval**, as the Executive cannot spend without Parliament's sanction.
- By **debates and discussions** on government policies and actions.

9.

Ans:

(i) Three federal features of the Government of India:

- **Division of Powers:** Powers are divided between the Union and the States through the Union List, State List and Concurrent List.
- **Bicameral Legislature:** India has a bicameral Parliament with the Rajya Sabha representing the States.
- **Independent Judiciary:** The Supreme Court acts as an impartial authority to interpret the Constitution and settle disputes between the Union and the States.

(ii) Two conditions when Parliament can make laws on subjects in the State List:

- **During a National Emergency:** Parliament can legislate on State List subjects when an emergency is in force.
- **Rajya Sabha Resolution:** If the Rajya Sabha passes a resolution by a two-thirds majority declaring a State subject to be of national importance.

(iii) Any two unitary features of the Government of India:

- **Single Constitution:** India has one Constitution for both the Union and the States.
- **Residuary Powers with the Union:** Powers not mentioned in any list are vested in the Union Government.

10.

Ans: An Adjournment Motion is a proposal moved in the House to suspend all other business in order to discuss a definite matter of urgent public importance. It is allowed only on serious issues such as major accidents, natural calamities, communal disturbances or other grave national concerns.

11.

Ans: The Rajya Sabha enjoys equal powers with the Lok Sabha in the matter of **amending the Constitution**. Any Constitutional Amendment Bill must be passed by both Houses with a **two-thirds majority** for it to become effective.

12.

Ans: If the President does not give his assent to a Bill, the following may happen:

1. Withholding of Assent: The President may refuse to give assent to the Bill. In such a case, the Bill does not become a law.

2. Returning the Bill: If the Bill is not a Money Bill, the President may return it to Parliament for reconsideration with suggestions. If Parliament passes the Bill again, with or without amendments, the President must give his assent.

13.

Ans: (c) 23

Explanation:

The quorum of a House is **one-tenth of its total strength**, as prescribed by the Constitution.

If the total strength of the House is **230**, then one-tenth of 230 is **23**.

Therefore, the correct answer is **23**.